UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION

In re: BRANDON HEITMANN, Debtor. /	Chapter 13 Case No. 24-41956-MAR Hon. Mark A. Randon

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CREDITOR MOHAMED SAAD'S MOTION TO DISMISS CASE AND BAR REFILING FOR 2 YEARS

NOW COMES Mohamed Saad, Creditor, by and through his attorneys, OSIPOV BIGELMAN, P.C., and states as follows for his Motion to Dismiss:

1. The Court has jurisdiction over this matter pursuant to 28 U.S.C. §§ 1334(a) and (b), 28 U.S.C. §§ 157(a) and (b)(1), and 28 U.S.C. § 151.

2. This is a core proceeding pursuant to 28 U.S.C. §§ 157(b)(2)(A) and (O).

3. For the reasons set forth in the brief attached hereto, Creditor Mohamed Saad respectfully requests that the Court dismiss this case.

Dated: November 6, 2024

Respectfully submitted,
/s/ Anthony J. Miller
Anthony J. Miller (P71505)
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In re: BRANDON HEITMANN, Debtor. /	Chapter 13 Case No. 24-41956-MAR Hon. Mark A. Randon

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BRIEF IN SUPPORT OF CREDITOR MOHAMED SAAD'S MOTION TO DISMISS CASE AND BAR REFILING FOR 2 YEARS

NOW COMES Mohamed Saad, Creditor, by and through his attorneys, OSIPOV BIGELMAN, P.C., and states as follows for his Brief in Support of his Motion to Dismiss Case:

Brandon Heitmann ("Debtor") filed this case, not in a good-faith effort to reorganize and repay his debts, but to escape the consequences of his fraudulent conduct. Debtor used his company, Exigent Landscaping, LLC ("Exigent") to defraud customers out of millions of dollars. Debtor used Exigent's customers as his own private piggy bank, stealing their money so that he could live the "high life," buying himself a Lamborghini, taking extravagant vacations, and flashing cash on social media.

When his house of cards inevitably began to crumble, Debtor turned to bankruptcy, attempting to "reorganize" in a failed Chapter 11 for Exigent, before commencing this case. Debtor is not an "honest and unfortunate debtor" in need of

a fresh start. He is a serial con artist, attempting to use this case to absolve him from the damage done by his dishonest enterprise.

RELEVANT BACKGROUND

Debtor commenced this case by filing a petition for Chapter 13 bankruptcy relief on February 29, 2024 ("Petition Date").

Before commencing this case, Debtor was the president and the sole and managing member of Exigent, a company whose primary business, since 2020, was the design and installation of custom swimming pools. Debtor was responsible for Exigent's operation and management, including the negotiation of customer contracts, payment of invoices, collection of accounts receivable, payment of subcontractors and vendors, and allocation of customer's trust funds. Debtor had sole control and authority over Exigent's bank account and was the sole person with check-signing authority.

A residential builder's license is required to engage in such work in Michigan, pursuant to M.C.L. § 339.2401, et. seq. Michigan law also requires contractors to include their residential builder's license information as a part of their contracts with their customers. M.C.L. § 339.2404a. However, despite designing and installing swimming pools since 2020, neither Debtor nor anyone employed by Exigent held a valid builder's license until March 2023.

Despite not holding a valid license, Debtor caused Exigent to print "License #: 802082183" at the bottom of its contracts. The number "802082183" is not a license number of any kind. Rather, it appears to be the "Identification Number," assigned to Exigent by the Michigan Department of Licensing and Regulatory

Affairs upon Exigent's registration as a limited liability company. Debtor included this number on Exigent's form contracts to deceive customers into believing that Exigent was properly licensed.[1]

Under this false "license number," Debtor induced many homeowners to sign contracts and pay large sums of money to Exigent. However, after getting paid, the work the Debtor and Exigent performed (when they performed at all) was extraordinarily poor and even dangerous.[2]

ARGUMENT

The Court should dismiss this case because (a) despite Debtor's inaccurate scheduling of claims, he is over the debt limit for Chapter 13 and (b) Debtor's pre- and post-petition conduct, together with his inaccurate and dishonest schedules, constitute cause to dismiss pursuant to 11 U.S.C. § 1307(a).

Debtor Exceeds the Debt Limit for Chapter 13

The Bankruptcy Threshold Adjustment and Technical Corrections Act of 2022 ("BTATCA") temporarily altered the Chapter 13 "debt-limit" contained in 11 U.S.C. § 109(e), making Chapter 13 available to individuals with noncontingent, liquidated debts of less than $2,750,000.00. Though the BTATCA has since expired, the Debtor filed this case before such expiration, so the BTATCA limits

[1] Including Creditor Saad, as described in Saad's Complaint, Adv. Proc. No. 24-04375-mar, ECF No. 1.

[2] Debtor defrauded so many homeowners that he was twice featured on Fox 2's "Hall of Shame." https://www.fox2detroit.com/news/bad-pool-builder-dives-in-hits-rock-bottom

apply in this case. The Debtor manipulated the claims listed on his Schedule E/F in an artificial attempt to stay below the Chapter 13 "debt limit."

The Debtor scheduled debts totaling $2,526,222.91. However, Debtor improperly scheduled several claims. Debtor underestimated several claims, when compared with claims filed by such creditors. Several creditors are inexplicably listed with claims of "$0.00" or "Unknown." Debtor improperly identified the amount that he owes to defrauded homeowners as zero. Some such homeowners have filed claims, in substantial amounts. The claims filed in this case total $3,632,604.44. By the filed claims alone, Debtor is at least $882,604.44 over the debt limit. Debtor does not qualify for Chapter 13, even under the enhanced limits of the BTATCA.

Debtor may argue that the debts were disputed when he filed his petition, and he therefore listed them on his Schedule E/F as having no value. However, the claims in this case were filed over five months ago (with the singular exception of Saad's claim, which was filed over two months ago). Debtor has not objected to any creditors' proof of claim in this case.

Debtor Did Not File This Case in Good Faith

Even if the Debtor did qualify for Chapter 13 relief under the debt limit, the Court should dismiss this case for cause, due to the Debtor's pre- and post-petition bad faith conduct. 11 U.S.C. § 1307 provides that, upon request of a party in interest, the court may, for cause, dismiss or convert a chapter 13 case, whichever is in the best interests of creditors and the estate. In the present case, cause exists to dismiss the Debtor's Chapter 13 bankruptcy.

* * *

WHEREFORE, Creditor Mohamed Saad respectfully requests that his Court enter an Order dismissing the above-captioned case with a bar to refiling and granting such other relief as this Court deems just and proper.

Dated: November 6, 2024

Respectfully submitted,
/s/ Anthony J. Miller
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CERTIFICATE OF SERVICE

Re: Motion to Dismiss and Bar Refiling, Brief in Support, Proposed Order, Notice and Opportunity to Respond, Certificate of Service

I hereby certify that on November 6, 2024, I electronically filed the above-referenced documents with the Clerk of the Court using the ECF system which will send notification of such filing to the Office of the United States Trustee and all those listed by the court as receiving electronic notices in this case from the court's CM/ECF system.

I also certify that on November 6, 2024, I served a copy of the foregoing documents by First Class Mail, with sufficient prepaid postage, to the following:

Brandon Heitmann

60749 Forest Creek Drive

Washington Township, MI 48094

Dated: November 6, 2024

Respectfully submitted,
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